

Overview of the DSA

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2.1 Introduction

The Digital Services Act (DSA) is a European Union (EU) Regulation aiming to assure fairness, trust, and safety in the digital environment. It preserves and upgrades the liability exemptions for online intermediaries that have existed in the European framework since 2000. It exempts providers of digital infrastructure-layer services, such as internet access providers, and content-layer services, such as social networks and file-hosting services, from liability for third-party content.

Simultaneously, the DSA imposes due diligence obligations concerning the design and operation of such services, in order to ensure a safe, transparent, and predictable online ecosystem. These due diligence obligations aim to regulate the general content moderation practices and design practices concerning advertising, and transparency, and regarding children and everyone's user experience. The due diligence obligations focus mainly on the *fairness of the process* rather than the content itself, and usually increase with the size and social relevance of the various services. Very large online platforms (VLOPs) and very large online search engines (VLOSEs) are subject to the most extensive risk management responsibilities, which must undergo independent auditing.

The DSA's major regulatory contribution is in *splitting* due diligence obligations from the liability for underlying content. Prior to the DSA, most of the laws tried to influence the providers' behaviour by threatening them with joint liability for what their users do. Save for some areas of law, the courts often faced a binary decision: impose a duty of care, or deny it and confirm a liability exemption. The DSA ends this binary. It comes up with its own self-standing expectations formulated as due diligence obligations. Providers violating them can be held to account. These legal obligations are

separate from those of their users (Chapter 9). Even providers who are not liable for users remain accountable for their own failings to be diligent. Violations of the DSA have no bearing on the provider's preservation of the liability exemptions.

2.2 Scope and Institutions

The DSA takes the form of an EU Regulation with a broad scope.¹ Regulations are directly applicable and do not need to be incorporated into national law. This means that all authorities in the Member States must immediately set aside any national laws that conflict with it. Being a 'horizontal' instrument (a rulebook applicable across the legal system), it will coexist with and be complemented by existing sector-specific legislation (consumer protection, intellectual property, security, home affairs, etc).

The DSA applies from 17 February 2024, across the EU. However, VLOPs and VLOSEs started being regulated earlier, from August 2023.² By February 2024, EU Member States were required to designate the agencies responsible for enforcement of the rules, including their primary agency—an independent national digital services coordinator (DSC).

Despite harmonisation, national laws remain important on many levels.

Providers that do not offer Europeans their digital services are not subject to the DSA. If they do, their lack of establishment in Europe is irrelevant; the DSA applies to providers only if they target EU markets or have a significant number of users from Europe (Chapter 9). In this sense, the DSA is very similar to the General Data Protection Regulation. The providers of relevant digital services that are established in Europe are subject to primary supervision by a national DSC of the state in which they have their main establishment. If they have no establishment in the EU, they are subject to supervision by a DSC of the state of their designated legal representative. If they failed to appoint one, they are supervised by any national DSC. In addition, the European Commission has extensive competencies to supervise and facilitate supervision in the area. VLOPs and VLOSEs, in particular, are subject to the European Commission's exclusive competence for special due diligence obligations.

The obligations imposed by the DSA are also enforceable through private actions (Chapter 19). Individuals and firms affected by breaches of the DSA's due diligence obligations can seek injunctions and claims for compensation before national courts. Such claims are often provided in national law, such as unfair competition law, contract law, consumer law, intellectual property law, or general tort law. Consumer organisations are equally empowered to seek injunctions and other redress remedies, including compensation, for violations of DSA due diligence obligations that harm the collective interests of consumers. National law can also extend collective redress to business

¹ DSA, ch I: arts 1–3, chs 4 and 17–20.

² Four months after the designation, which took place in April 2023, was delivered to companies, European Commission, 'DSA: Very Large Online Platforms and Search Engines' (*Shaping Europe's digital future*, 25 April 2023) <<https://digital-strategy.ec.europa.eu/en/policies/dsa-vlops>> accessed 10 August 2023.

organisations. These legal claims are again distinct from liability for the underlying content. Thus, a social network can violate the DSA and be subject to injunctions to remedy this failing, but it will remain exempted from liability for a particular violation committed by one of its users (eg their hate speech or defamatory content).

2.3 Liability Exemptions

The DSA builds upon the two-decades-old rulebook of the E-Commerce Directive. It preserves and upgrades its basic liability rules.³ The DSA's reincorporation of the liability exemptions means that they receive renewed support through the democratic process, as rules that have withstood the test of time and remain fit for purpose.

The DSA continues to single out the three most common technical activities for liability exemptions. The liability exemptions prevent all the state actors, including national and Union agencies, from imposing liability for third-party content and obligations to generally monitor third-party content. The three relevant technical activities are as follows:

- Mere conduit services cover any services that 'transmit' information in a 'communication network' or provide 'access' to a 'communication network'. To the extent that providers remain neutral, they are not liable even if they are notified about illegal information.
- Caching services cover 'automatic, intermediate and temporary' storage of third-party information. To the extent that providers remain neutral, they are not liable unless the illegal content is removed from the source, and they are notified about it.
- Hosting services cover any services that 'store' information at the request of third parties. To the extent that they remain neutral, providers are in principle not liable unless they are notified.

This triad of activities together is referred to as 'intermediary services.' They cover most of the digital ecosystem. Although the system largely copies the E-Commerce Directive, the scope of mere conduit services is partly expanded. While the difference between content-layer and infrastructure-layer services is not explicitly spelled out in the text of the DSA, it is implicit in its various provisions. Mere conduit services, which mostly cover infrastructure, have exemptions that cannot be lost even when providers are notified about illegal content (eg a website they give access to). Even among hosting services, requests should in principle be directed to the providers, who are closer to the content because they have superior technical and operational ability to act. This means that webhosting firms should usually be expected to act when the hosted websites

³ DSA, ch II: arts 4–10, chs 4–8.

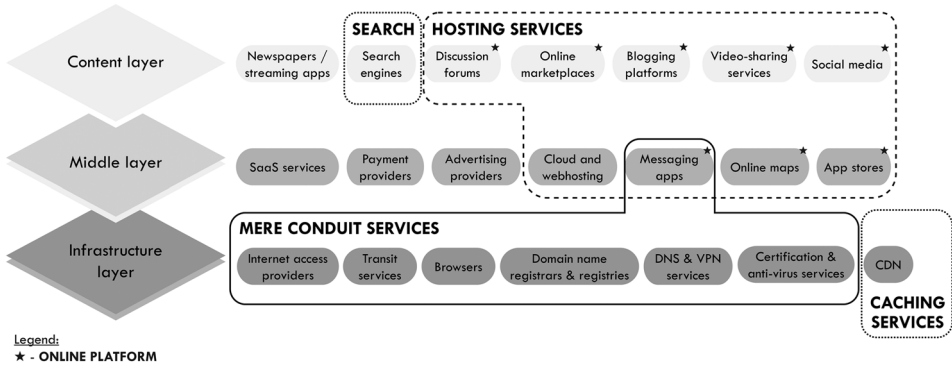


Figure 2.1 The DSA's regulatory coverage

which store the illegal content fail to do so. Figure 2.1 depicts the regulatory coverage of the entire digital ecosystem.

2.4 Due Diligence Obligations

The real novelty of the DSA lies in the creation of fully fledged tiers of due diligence obligations.⁴ Instead of 'liability', the DSA insists on the 'responsibility' that grows with the service's size and societal impact. These obligations are *not* preconditions of liability exemptions. However, they are clearly meant to legislatively balance the liability assurances with some societal responsibilities as to trust, safety, and fairness in these services. Like all due diligence obligations, they relate more to the process rather than substance. Their goal is to strengthen the fundamental rights of all stakeholders and increase fairness of individuals' dealings with providers of digital services.

The tiers of due diligence obligations apply depending on the type and size of the service. Some services are only subject to the universal layer of obligations, while other services are subject to all four layers. For VLOPs, the most regulated of all services, due diligence obligations have a layer-cake structure, with special obligations on the very top and universal obligations at the bottom.

Chapter III of the DSA is structured around the following four basic tiers of due diligence obligations, which I have labelled with four adjectives for ease of navigation (see Figure 2.2):

- **Universal obligations** apply to all services that could benefit from a liability exemption (mere conduit, caching, and hosting). With the notable exception of annual reporting, the obligations apply irrespective of the size of the firm.

⁴ DSA, ch III: arts 11–48, chs 9–16.

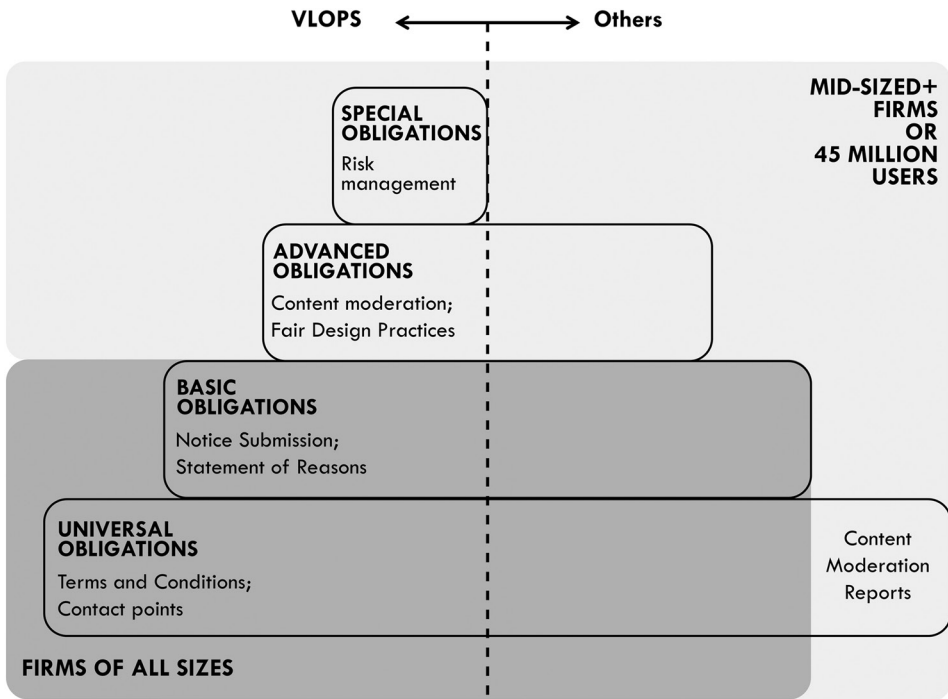


Figure 2.2 The DSA's layered structure

- **Basic obligations** apply to all services that technically perform hosting, irrespective of their size.
- **Advanced obligations** apply to a subset of hosting services, online platforms, which are bigger than small firms and that distribute information to the public as their core function. The category includes a special set of obligations for online marketplaces.
- **Special obligations** apply to online platforms that are very large (ie VLOPs). By extension, they also apply to online search engines that are very large (ie VLOSEs) with minimum modifications in scope. To trigger them, it is not size, but reach that matters. When platforms reach roughly 10% of the population of the EU (ie 45 million monthly average active users), special obligations are triggered.

Due diligence obligations apply irrespective of whether a liability exemption is subsequently lost (Chapter 9). If a service, or part of a service, in its technical description, matches the subject of a liability exemption granted by the DSA (eg hosting), the corresponding due diligence obligations apply. This remains the case even if providers do not meet or subsequently fail to meet the separate conditions for their liability exemptions (eg they stop being neutral with respect to some of the hosted content).

2.4.1 Universal due diligence obligations for all services in scope

Providers of intermediary services are obliged to designate a single point of contact for authorities and users (Articles 11–12). If they are not established in the EU, they must appoint a legal representative, a person, or a company, in one of the EU Member States. The legal representative can be held liable for the provider's non-compliance with the DSA (Article 13).

There is no universal obligation to moderate content, but all intermediary services are under an obligation to explain in their terms and conditions whether and, if so, how they moderate third-party content on their services. The policies must be explainable (Article 14). Content moderation is understood to be any restriction placed on the availability, visibility, and accessibility of information. Providers must describe in detail their content moderation practices, including whether, and if so how and when, they use automation. More importantly, when enforcing these rules, they are under an obligation to do so 'with due regard to' the rights and legitimate interests of all parties involved (Article 14(4)). This amounts to a legal requirement that they assess the fairness of their rules and their impact on human rights of their content-related decision-making.

All intermediary services, unless they qualify as micro- or small firms, are subject to new transparency obligations (Article 15). Small firms are defined as enterprises which employ fewer than 50 persons and whose annual turnover and/or annual balance sheet total does not exceed €10 million. However, if small and micro-firms qualify as VLOPs, they remain under the obligation (Chapter 9). All such providers must publish annual reports concerning what orders they have received from authorities (eg to remove content or provide information), and how they operate their content moderation practices (divided into distinct categories of actions), including the functioning of their internal complaint-handling systems. Hosting providers also must report on how they handle various notifications. Finally, all such providers must explain how they use automation in their content moderation. They must explain what tools they use, for what purposes, with what accuracy, and how they avoid making mistakes (Chapter 16).

In practice, this means that many firms with more than 50 employees that offer intermediary services to European users will have to start preparing and issuing annual reports. The provision will thus apply to many firms which benefit, even if only for part of their service (eg editorial media operating a discussion section), from a liability exemption. It will most definitely apply to many infrastructure services, such as internet access providers, content delivery networks, app stores, or webhosting services, for which it was less customary to publish such reports up until now. Very likely, it will also include domain name authorities, Virtual Private Network (VPN), email, and messaging services. Traditionally, such services are not expected to moderate content—but if they do (as is increasingly the case), they need to be transparent and fair in their decision-making (Article 14(4)).

2.4.2 Basic obligations for all hosting services

In addition, services providing storage of third-party information (hosting) are obliged to comply with some procedural obligations when moderating content. The DSA prescribes how exactly they should receive notifications about illegal content on their services. This ensures that proper notifications cannot be ignored.

Notification specifications (Article 16) only apply to reporting of manifestly *illegal* content. Thus, the violations of terms of use are left unregulated and subject to the providers' rules. If the notice specifications are fulfilled by notifiers (eg victims, non-government organisations (NGOs), or authorities), this often (though not automatically) means that the providers are put on notice (ie if knowledge of the manifest illegality is relevant for their liability exemption, they can lose exemption unless they act against that piece of content). The DSA 'codifies' the latest interpretation by the Court of Justice of the European Union (CJEU) that such notices should not require a 'detailed legal examination' by the provider (Chapters 7 and 11).

Hosting providers must uphold *fair processes* in content moderation, for instance, by keeping the complaining party in the loop. Uploaders will receive an explanation on the grounds and reasons behind providers' actions to affected users, if their content or accounts are restricted or demonetised—be it because the content is illegal, or because it violates its terms of use. Such explanations have prescribed minimum requirements and should include information about potential redress. Thus, takedowns or other restrictions all must be properly justified to users, irrespective of the size of providers (Article 17). The information should be sufficient to seek redress, under the national law as is the case today, and going forward, under the DSA for mid-sized or bigger online platforms.

The DSA also obliges hosting providers to notify the relevant authorities about illegal content that qualifies as a crime involving a threat to human life or safety if they become 'aware of it' (Article 18). This usually happens when they conduct content moderation and process notifications (Chapter 11).

2.4.3 Advanced obligations for online platforms that are not small firms

In addition, the richest tier of the due diligence obligations applies to a subset of 'hosting' services known as 'online platforms'. The term 'online platform' is used globally, but it is the first time that it has been defined in a legal instrument in the EU. While 'hosting' services simply provide a technical function of storage of third-party information, 'online platforms' also disseminate it to the public as their core feature and can be described as 'public-facing hosting providers'. Generally, all due diligence obligations applicable to online platforms carve out small and micro-firms.

The obligations can be divided into the following main categories:

- Content moderation:
 - o fair process;
 - o fair rules.
- Risk management:
 - o fair design practices;
 - o general risk management.
- Transparency and oversight.

2.4.3.1 Content moderation (Chapters 10–12)

To facilitate quality enforcement, the DSCs will certify trusted flaggers (eg NGOs, or associations) whose notifications are known to be of high accuracy. Providers are asked to give them priority in the assessment process. Such status can be revoked if misused. Platforms must operate a free-of-charge internal complaint mechanism which allows users to appeal their decisions within six months. Individuals who frequently incorrectly flag lawful content, or submit manifestly illegal content, shall be suspended. This incentivises good behaviour on all sides and impedes misuse by rogue actors.

Any decision restricting access, visibility, monetisation, or accounts of users, regardless of whether it is based on illegality or terms and conditions, should be reviewable. Both notifiers and affected authors of content can complain. Decisions about restrictions should be fair (ie non-arbitrary and non-discriminatory) and proportionate. Unsuccessful parties should be informed about the out-of-court dispute settlement (ODS) mechanism through which they can file complaints, usually for a fee. ODS can be pursued even when no internal complaint was filed first. However, the zero cost of internal complaints will likely attract many complainants first. ODS providers will have to show independence and expertise before they are certified by the DSCs of their Member State of the establishment. If complainants (content creators or original notifiers) win an ODS case, their fees and reasonable costs shall be reimbursed by providers. While ODS decisions are not binding, unjustified failure to observe them is a violation of the DSA.

2.4.3.2 Risk management (Chapters 13–15)

On top of the universal obligation to fairness in terms of conditions, online platforms must design, organise, and operate their interfaces in a way that avoids deceit, manipulation, and other material distortion or impairment of their users' ability to make free and informed decisions (what is sometimes referred to as 'dark patterns'). Users can be consumers and firms. While the specific rules on consumer-facing practices remain applicable (eg the Unfair Commercial Practices Directive⁵), the DSA effectively legislates

⁵ European Parliament and Council Directive 2005/29/EC of 11 May 2005 concerning unfair business-to-consumer commercial practices in the internal market and amending Council Directive 84/450/EEC, European Parliament and Council Directives 97/7/EC, 98/27/EC, and 2002/65/EC and European Parliament and Council Regulation (EC) No 2006/2004 [2005] OJ L 149/22 (Unfair Commercial Practices Directive).

a general clause against misrepresentation and aggressive practices in all horizontal relationships that are not covered in any sector-specific legislation. The only requirement is that the practices must be conducted via apps, websites, or other surfaces operated by online platforms that are not small or micro. Online platforms are also subject to an obligation to ensure a high level of privacy, safety, and security of minors on their services. This is further exemplified by a ban on profiling-based advertising aimed at minors.

Among the design features of services, *advertising* and *recommender systems* are more explicitly regulated. Online platforms are obliged to properly label advertisements and explain who paid for them and why a particular user sees each particular ad. Any content that is shown against payment is understood to be an advertisement. If the parameters for advertisement can be modified, this should be explained. Online platforms should enable content creators to declare advertisements in uploaded content. Finally, while targeted or personalised advertising is not banned as such, advertising to anyone, including adults, shall not be based on profiling using sensitive data as an input. Online platforms operating any recommender systems (eg timelines, suggestion tools, recommended video sections, etc) shall explain clearly the main parameters they use, and in that case, how to modify or influence those parameters. Customisability is not prescribed for regular online platforms. However, if it exists, it must be constantly accessible and modifiable for users.

A special set of mostly transparency-related rules applies to ‘online platforms allowing consumers to conclude distance contracts with traders.’ As a sort of ‘know-your-business-customer’ obligation, such platforms must take various steps to allow the traceability of traders using their services to offer products and services, including by requesting their ID documents and payment details. The collected information is stored on online platforms and can be provided to third parties if they have a legitimate interest (eg to enforce their consumer rights). The provider shall avoid confusion as to who is the trader offering the product or service.

Online platforms must also ensure their traders can provide (through their interface) all necessary information that is required by applicable consumer laws, including on product safety. They shall randomly check if the products and services sold through the platform were identified as illegal in the official databases—a juggling act to avoid imposing a general monitoring obligation. Finally, if online platforms become aware that some products or services sold through their platforms are illegal, they should inform the relevant consumers about the illegality, the identity of traders, and available redress.

2.4.3.3 Transparency (Chapter 16)

In addition to their basic due diligence obligation on transparency, online platforms must report, twice a year (on the 17th of every February and August), the number of average monthly users, and once yearly on the specifics of internal and external (ODS) disputes, and various repeat-infringer suspensions. They are obliged to submit their decisions about content, along with explanations, to a central database maintained

by the European Commission. Additional transparency obligations are foreseen for trusted flaggers, ODS bodies, and regulators.

2.4.4 Special obligations for VLOPs

Online platforms with more than 45 million active average monthly users are very large in terms of reach. Since all online platforms must publish their active monthly user numbers biannually, they will know when they reach the threshold. Although the definition of ‘active recipient of services’ is very broad, and thus invites some discussion about the scope, registered and non-registered users alike qualify (Chapter 9). For instance, this means the following users count: on online marketplaces, both sellers and buyers, including prospective buyers; on social networks, both registered and non-registered users; on short-term rental services, both providers of rental and potential tenants.

The European Commission is the only authority responsible for the supervision and enforcement of special due diligence obligations. Upon obtaining information, it designates an online platform as a ‘VLOP’ or ‘VLOSE’. The list is published in the Official EU Journal. Special obligations enter into force for VLOPs and VLOSEs four months after their designation.

VLOPs must identify, analyse, and assess any systemic risks stemming from the design, functioning, and use made of their services. They shall carry out this exercise at least once a year. The four main focus areas for such regular exercises are:

- Illegal content, including illegal conduct, on their services (eg hate speech, copyright infringements or counterfeits, bullying, stalking, child abuse material, unsafe products, etc).
- Actual or foreseeable negative effects on:
 - o all fundamental rights (eg chilling effects on freedom of speech, media pluralism, data protection, right to information, children’s rights, etc);
 - o pre-defined protected interests: civic discourse, electoral process, public security, gender-based violence, public health, and minors.
- Serious negative consequences to users’ physical and mental well-being.

The typical actions expected to counter these challenges include the redesign of their amplification and moderation tools, such as recommender systems and algorithmic decision systems, adjustment of content moderation rules, advertising rules, an increase of resources for various trust and safety activities, improvement of documentation and handling of incidents, protection measures in favour of vulnerable groups, and data-related practices. Given the known disparity of resource allocation across the world or linguistic communities, VLOPs must consider their actions in the local context (ie for each language and each country).

Risk reports should be submitted at VLOPs' own expense to independent auditors who should assess compliance with all special due diligence obligations, but also universal, basic, and advanced obligations. Codes of Conduct signed by VLOPs can further inform the substance of these obligations. If the audit is not fully positive, VLOPs must consider the suggested operational recommendations of auditors. If they do not implement them, they must justify why in the implementation report, and set out alternatives. The self-assessment, own mitigation measures, external audits, and follow-up implementation reports are transmitted to the European Commission (unredacted) and made available to the public (redacted).

In addition to general risk management that concerns a broad set of risks, the DSA specifies a few other areas of special obligations concerning content moderation systems (crisis protocols, increased reporting, and resource allocation), design of the services (recommender systems and advertising transparency) and oversight (data access and scrutiny by supervisory authorities and vetted researchers):

- Regarding content moderation, VLOPs must maintain a crisis response mechanism for instances of extraordinary circumstances leading to a serious threat to public security or public health in the Union or a part of it. The mechanism grants the European Commission powers to ask VLOPs to implement certain actions. In addition to other transparency obligations, VLOPs must specify what human resources they put into the content moderation per each official language of Member States, how they support other obligations concerning the fairness of content moderation, and how accurate are the procedures.
- Regarding design of services, recommender systems offered by VLOPs must always include at least one option that is not based on the profiling. However, it does not have to be a default. Advertising carried by VLOPs must be accompanied by a publicly accessible archive ('repository') which stores for one year all necessary disclosures about published advertisements, along with a minimum of additional meta information.
- Regarding oversight, VLOPs must provide access to data to supervising authorities and vetted researchers. DSCs and the European Commission shall have access to the necessary data to monitor and assess compliance with the DSA. They should assist with explaining the design and logic of the functioning of their recommendation systems. Vetted researchers, a status granted by a DSC, shall have access to data to conduct research into the detection and understanding of systemic risks, as well as adequacy, efficiency, and impacts of the mitigation measures adopted by the platforms. Finally, VLOPs are obliged to appoint a compliance officer who is an independent senior manager with distinct responsibility for compliance with DSA obligations. The officer should report directly to the management body of the VLOP and have a clear set of tasks and authorisation within the firm.

2.4.5 Special obligations for VLOSEs

Search engines that have more than 45 million active monthly users qualify as VLOSEs. Their special obligations mirror those of VLOPs. However, because the entire product of search engines does not qualify for one unitary hosting exemption, they are not explicitly subject to all universal, basic, and advanced obligations as their online platform counterparts. Search engines are explicitly only subject to a chapter on special obligations. However, many of the special obligations refer to and build upon universal (eg transparency) or advanced (eg recommender systems or advertising) obligations. These obligations thus extend to VLOSEs also.

Moreover, to the extent that parts of their services are covered by one of the liability exemptions (eg storage of keywords in sponsored results or links in the natural search results), they can also be subject to all other due diligence obligations. As extensively debated in Chapter 7 of this book, this is a point that will have to be clarified by the CJEU in the coming years. In my view, search engines in some situations can be regarded as hosting and online platform services. It is therefore still possible that the content moderation of search engines will be subject to the DSA's due diligence obligations.

2.5 Co-regulation and Enforcement

The DSA creates a complex supervisory system.⁶ The DSA's prescriptive rules concerning content moderation can be enforced through a mixture of administrative enforcement and private causes of action. In contrast, the system of risk management applicable to Big Tech—VLOPs and very large search engines (VLSEs)—is only subject to administrative enforcement and additional co-regulation through codes of conduct.

The administrative competencies are distributed between national DSCs and the European Commission. The risk management obligations applicable only to Big Tech are supervised exclusively by the European Commission. Other due diligence obligations of Big Tech, such as those concerning content moderation, are supervised jointly by the Member States of their establishment and the European Commission, with the latter having a priority to enforce. Finally, the due diligence obligations of other providers are supervised only by the authorities of the Member State of their own establishment or that of their legal representative.

National laws continue to outline procedures and powers of national authorities that allow them to issue orders regarding illegal content on digital services. The DSA

⁶ DSA, ch IV: arts 49–88, chs 17–20.

only provides minimum and optional requirements for such orders (Chapter 8). Member States are *not* prohibited from using other forms of requests than the foreseen orders. For instance, Union law allows them to send regular notifications. It is important, however, to distinguish between state-power-based orders of courts or authorities and private-enforcement-related notices, which do not trigger an obligation to remove, but only an obligation to assess, regardless of the public nature of the sender.

2.6 The Concept of Illegal Content

The DSA does *not* harmonise what content or behaviour counts as illegal (Article 3(h)). The DSA basically refers to the entire legal system of its Member States to express what is illegal for the purposes of the DSA. In some areas, such laws can be harmonised, but this remains an exception.

When national laws are largely in sync and only diverge *on margin*, platforms can bridge the differences in the standard of illegality by the least common denominator in the terms and conditions (eg when two countries prohibit the incitement of violence, but they take different views on when behaviour is illegal). But they can also enforce these laws only locally. Both approaches are in line with the DSA, and are legitimate.

The more difficult questions arise when two legal systems prescribe *mutually incompatible* behaviour because they demand contradictory actions (eg disclosure of some facts may be illegal in one country, while prescribed in the other). In cases of such conflicts, the challenge is to find an implementation that satisfies both Member States. Within the EU, the possible moderators of conflicts are the rules of the internal market (Chapter 17) and fundamental rights (Chapter 3).

But this outcome also means that such national content laws do produce immediate effects across the Union with the help of the DSA. A malicious government could adopt legislation and then enforce it through the DSA. The only realistic check on such enforcement is the initial geolocation of such requests by providers and a potential countervailing interim relief obtained from the judiciary. Providers might also decide to push against such legislation and deny the requests or orders, but by doing that, they expose themselves to legal risks of liability for distributing such content.

2.7 Conclusion

The DSA does not regulate content. It regulates the procedures under which online content disputes take place on digital services. Its aim is to create a trustworthy environment by two main mechanisms. The first of these is by making people safe from

illegal content. This is achieved by removing such content quickly and offering means that can bring the original perpetrators of wrongs to account. Second, by giving people more scope to pursue content disputes with platforms, whenever they feel that they have observed the rules but were accused otherwise. Removing such arbitrariness can foster the trust of people in the digital ecosystem in the long run.